

**BEFORE THE OFFICE OF ADMINISTRATIVE HEARINGS
STATE OF NORTH CAROLINA**

COUNTY OF PINE HOLLOW

In the Matter of:

MAYA OKAFOR, a minor, by and through the
parent, GRACE OKAFOR,

Petitioner,

v.

PINE HOLLOW COUNTY BOARD OF
EDUCATION,

Respondent.

Case No. _____

**DUE PROCESS COMPLAINT
NOTICE**

20 U.S.C. § 1415(b)(7)

34 C.F.R. § 300.508

Date: June 1, 2026

I. PRELIMINARY STATEMENT

1. Petitioner Maya Okafor (“Student”) is a student eligible for special education and related services under the category of Speech or Language Impairment, and attends Cedar Ridge Middle School in the Pine Hollow County Schools, for which the Pine Hollow County Board of Education is the responsible local educational agency and the respondent here (“District”). This due process complaint is brought on Student’s behalf by the parent, Grace Okafor (“Parent”). Petitioner and the Parent are represented by Renée Castillo of Castillo Education Law PLLC.

2. The District has denied Student a free appropriate public education by declining to assess written expression while adding instruction in it; by refusing to fund an independent educational evaluation without defending its own; by changing the delivery of Student’s speech-language therapy without prior written notice; and by delivering half the therapy the operative individualized education program requires, in a group where it requires individual

sessions. Petitioner requests an impartial due process hearing on the problems stated in this complaint.

II. REQUIRED INFORMATION

34 C.F.R. § 300.508(b)(1)–(3).

Required element	As provided
Name of the child	Maya Okafor
Address of the child’s residence	72 Laurel Court, Pine Hollow, NC 27999
Name of the school the child attends	Cedar Ridge Middle School
Date of birth	April 19, 2013
Contact for the Parent	grace.okafor@example.com, (555) 010-2088

III. JURISDICTION, TIMELINESS AND BURDEN

3. A parent may file a due process complaint on any matter relating to the identification, evaluation or educational placement of a child with a disability, or the provision of a free appropriate public education to the child. 34 C.F.R. § 300.507(a)(1). North Carolina sets its own time limitation for filing, which is shorter than the two-year period in 34 C.F.R. § 300.507(a)(2). The violations pleaded below begin with the individualized education program team meeting of August 21, 2025 and continue to the date of this complaint.

4. Student resides in the District, which is the local educational agency responsible for making a free appropriate public education available to Student. 34 C.F.R. § 300.101.

IV. STATEMENT OF FACTS

5. On May 6, 2025, the District administered the CELF-5 to Student. Student obtained a Core Language Score of 71, at the 2nd percentile, an Expressive Language Index of 68 and a Receptive Language Index of 79. (p. 1).

6. The individualized education program dated August 21, 2025 records that written expression “was not assessed in May 2025,” and records the Parent’s request that the District assess it. (p. 1).
7. The same document records the teacher’s report that Student “does not raise her hand and gives one-word answers when called on,” and that Student produces sentences of four to six words and omits verb tense markers. (p. 1).
8. The individualized education program dated August 21, 2025 provides speech-language therapy at 60 minutes per week, individual, in the speech room, from August 21, 2025 to August 20, 2026, and specially designed instruction in written expression at 45 minutes per week in the resource room. (p. 1).
9. The prior written notice within that document records that the team “declined the parent’s request to reevaluate written expression, on the basis that the 05/06/2025 evaluation is current and the added instruction addresses the concern.” (p. 2).
10. The Parent signed that individualized education program on August 21, 2025 and wrote: “I agree with the services. I still want written expression tested.” (p. 2).
11. In the week of September 22, 2025 the District’s related service log records 30 minutes of speech-language therapy in a group of 3, with the note “provider caseload reassigned; individual slot unavailable.” (p. 1).
12. On November 10, 2025, the Parent requested in writing an independent educational evaluation in speech-language and written expression at public expense, stating her disagreement with the evaluation dated May 6, 2025. (p. 1).
13. On December 4, 2025, the District issued a prior written notice declining to fund an independent educational evaluation, stating that it “considers the May 6, 2025 evaluation to be appropriate” and that it “will conduct its own assessment of written expression during the spring 2026 reevaluation window.” (p. 1).

14. On January 14, 2026, the Parent wrote that Student reported her speech sessions were now with two other students and half as long, and asked for the service log and when individual sessions would resume. (p. 1).
15. On January 21, 2026, the District sent the service log and wrote that the provider's "caseload was reassigned in September and individual sessions have not been available since," and that it expected to "post a second SLP position this spring." (p. 1).
16. The District's related service log for August 25, 2025 through January 30, 2026 records 22 weeks in the period: 4 weeks at 60 minutes individual, 15 weeks at 30 minutes in a group of 3, and 3 weeks with no service. It records 690 total minutes delivered against 1,320 minutes required by the individualized education program for those weeks, and states: "The IEP was not amended." (p. 1).
17. The same log records no service in the weeks of October 27, 2025 and January 19, 2026, each noted "provider absent; no make-up scheduled." (p. 1).
18. On February 9, 2026, the Parent wrote that the log shows 690 minutes delivered against 1,320 required, asked the District to make up the missed minutes and restore individual sessions, and recorded that she had received no response about the independent evaluation beyond the December 4, 2025 notice. (p. 1).

V. STATEMENT OF THE PROBLEMS

A. Failure to evaluate appropriately and on time

34 C.F.R. §§ 300.111, 300.301–300.311.

19. An evaluation must assess the child in all areas related to the suspected disability and must be sufficiently comprehensive to identify all of the child's special education and related services needs. 34 C.F.R. § 300.304(c)(4), (c)(6).
20. The only speech-language evaluation of Student is the District's of May 6, 2025, and the District's own program document records that written expression "was not assessed" in it

(paragraphs 5 and 6). The Parent asked at the meeting of August 21, 2025 that it be assessed, and wrote on the signature page: “I still want written expression tested” (paragraphs 6 and 10).

21. The District’s stated reason is that the May 6, 2025 evaluation “is current and the added instruction addresses the concern” (paragraph 9). The same document adds 45 minutes a week of specially designed instruction in written expression (paragraph 8). The District therefore identified a need in written expression sufficient to deliver weekly instruction for it, and declined to measure the need that instruction addresses. No baseline, no present level and no goal for written expression can be written from the record, and none appears in the program.

B. Refusal to fund an independent educational evaluation

34 C.F.R. § 300.502.

22. A parent who disagrees with an evaluation obtained by the public agency has the right to an independent educational evaluation at public expense, and the agency must either ensure one is provided or file a due process complaint to show that its own evaluation is appropriate, without unnecessary delay. 34 C.F.R. § 300.502(b)(1), (b)(2).

23. The Parent disagreed in writing with the evaluation of May 6, 2025 and asked for an independent educational evaluation in speech-language and written expression at public expense on November 10, 2025 (paragraph 12). The District declined by prior written notice of December 4, 2025 (paragraph 13). It has not filed a due process complaint to defend its evaluation, and had made no further response by February 9, 2026 (paragraph 18).

24. The District’s stated reason is that its evaluation is appropriate and that it “will conduct its own assessment of written expression during the spring 2026 reevaluation window” (paragraph 13). A promise to assess later is not the defense the regulation provides for. The regulation gave the District two courses once the Parent disagreed, and it took neither.

C. Failure to give prior written notice

34 C.F.R. § 300.503.

25. A public agency must give the parent prior written notice a reasonable time before it proposes or refuses to initiate or change the provision of a free appropriate public education to the child. 34 C.F.R. § 300.503(a).

26. Student's speech-language therapy changed in the week of September 22, 2025 from 60 minutes individual to 30 minutes in a group of 3, and the District's own log gives the reason and records that "The IEP was not amended" (paragraphs 11 and 16). The record holds no prior written notice of that change. The Parent learned of it from Student, asked about it on January 14, 2026, and was told on January 21, 2026 that individual sessions "have not been available since" September (paragraphs 14 and 15).

27. The District gave notice of what it decided on August 21, 2025 (paragraph 9), which is the program it then stopped delivering. For the change it made a month later it gave none, and the Parent was left to discover a halving of her daughter's therapy and to ask for the log that showed it. The Parent could not seek review of a change she was not told about.

D. Failure to implement the services the individualized education program requires

34 C.F.R. § 300.323.

28. A public agency must make the special education and related services available to the child in accordance with the child's individualized education program. 34 C.F.R. § 300.323(c)(2).

29. The program requires 60 minutes a week of individual speech-language therapy (paragraph 8). Across the 22 weeks of the District's own log, 4 weeks carried that service, 15 weeks carried 30 minutes in a group of 3, and 3 weeks carried none: 690 minutes delivered against the 1,320 the program required, and 1,080 of the 1,320 required individual minutes never delivered individually (paragraphs 16 and 11). Two of the three weeks with no service are recorded "provider absent; no make-up scheduled" (paragraph 17).

30. The District's stated reason is that the provider's caseload was reassigned and that it expects to "post a second SLP position this spring" (paragraph 15). A staffing decision the District made in September is the District's to remedy, and the program was never amended to record what it had decided to deliver instead. Student received half the therapy her program requires, in a setting it does not provide for, for the greater part of a school year.

VI. PROPOSED RESOLUTION

34 C.F.R. § 300.508(b)(6).

31. The Parent proposes the following resolution:

- (a) fund an independent educational evaluation in speech-language and written expression at public expense (claims A and B; 34 C.F.R. § 300.502);
- (b) provide 1,080 minutes of compensatory speech-language therapy, delivered individually, being the difference between the 1,320 minutes of individual therapy the individualized education program required across the 22 weeks of the District's log and the 240 minutes delivered individually, and continuing for any further week in which individual therapy is not delivered (claim D; 34 C.F.R. § 300.323);
- (c) restore individual speech-language therapy at 60 minutes per week as the individualized education program requires (claim D; 34 C.F.R. § 300.323); and
- (d) convene the individualized education program team, after the independent educational evaluation, to write present levels and a measurable annual goal for written expression (claim A; 34 C.F.R. § 300.324(b)).

VII. ADDITIONAL INFORMATION REQUIRED IN NORTH CAROLINA

32. Basis of the complaint, in the categories Form H-06E lists: the evaluation of Student, and the denial of a free appropriate public education.

VIII. RESERVATION OF RIGHTS

33. Petitioner reserves the right to amend this complaint, to raise additional issues disclosed by documents not yet produced, and to seek any other relief the hearing officer is authorized to grant.

34. Petitioner reserves the right to seek reasonable attorneys' fees and costs under 20 U.S.C. § 1415(i)(3)(B).

Dated: _____

Respectfully submitted,

Renée Castillo
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CERTIFICATE OF SERVICE

Counsel for Petitioner and the Parent certifies that on the date written below a true and complete copy of this Due Process Complaint Notice was served on each office named below, by the method indicated below.

Method of service: ☐ U.S. mail ☐ Hand delivery ☐ Other: _____

Served on:

Superintendent, Pine Hollow County Board of Education, 200 County Line Road, Pine Hollow, NC 27999

North Carolina Department of Public Instruction, 6356 Mail Service Center, Raleigh, NC 27699-6356

Dated: _____

Renée Castillo
Attorney for Petitioner and the Parent

Attorney Review Notes – Attorney Work Product – Remove Before Filing

Citations

Authority	Tier	Pin cite	Quoted
34 C.F.R. §§ 300.101, 300.111, 300.301–300.311, 300.304, 300.323, 300.324, 300.502, 300.503, 300.507, 300.508	1	n/a	no

No case is cited. *Endrew F.* and *Rowley* were considered and are not needed: no claim here turns on the adequacy of the program as written. No Fourth Circuit decision was confirmed in this session, so none is cited.

Adverse authority and expected defenses

- The District will argue the May 6, 2025 evaluation was current and that its own spring 2026 assessment of written expression answers the Parent’s concern. Claim A answers it: the District delivers weekly instruction in a skill it has never measured. Claim B answers the second half: a later District assessment is not the alternative 34 C.F.R. § 300.502(b)(2) provides.
- The District will argue group therapy at 30 minutes was a material equivalent, or that staffing was beyond its control. Claim D answers it from the minutes its own log records. *The Fourth Circuit’s standard for a material failure to implement was not confirmed in this session and is not cited. Confirm it before the hearing.*
- The District may argue that the prior written notice within the August 21, 2025 program covered the services, so no further notice was owed for the September change. Claim C answers it.
- The District may argue the Parent’s February 9, 2026 letter shows she had the log and could have filed earlier. That bears on timeliness, below.

Arithmetic

What	Inputs	Computation	Result
Minutes the program required across the log period	22 weeks (service log); 60 minutes per week (IEP, p. 1)	22 * 60	1320 minutes
Minutes delivered, recomputed from the weekly entries	4 weeks at 60 minutes (service log); 15 weeks at 30 minutes (service log); 3 weeks at 0 (service log)	460 + 1530 + 3*0	690 minutes
Shortfall against the required total	1,320 minutes required (computed above); 690 minutes delivered (computed above)	1320 - 690	630 minutes

What	Inputs	Computation	Result
Minutes delivered individually	4 weeks at 60 minutes individual (service log)	4 * 60	240 minutes
Individual minutes required but not delivered individually	1,320 minutes required (computed above); 240 minutes delivered individually (computed above)	1320 - 240	1080 minutes
Weeks without individual therapy	22 weeks (service log); 4 weeks at 60 minutes individual (service log)	22 - 4	18 weeks
Limitations cutoff, one year before the planned filing date	June 1, 2026 planned filing date (statement)	2026 - 1	2025

The District's own summary states 690 minutes delivered against 1,320 required. Both were recomputed from its weekly entries and both are correct. The 1,080 figure in remedy (b) is the measure that matches the violation pleaded: the program requires individual therapy, and group therapy does not discharge it.

For counsel to decide

- *North Carolina's filing period is one year, not the federal two.* The evaluation of May 6, 2025 is pleaded as background at paragraph 1 and falls before the cutoff computed above. The violations pleaded begin with the meeting of August 21, 2025. Whether any exception reaches the evaluation itself is not addressed here.
- Which party bears the burden of proof in a North Carolina special education due process hearing was not confirmed in this session. Confirm it on the official text before filing, and amend the Jurisdiction, timeliness and burden section, which states no allocation.
- Remedy (b) asks for 1,080 minutes on the individual-minutes measure. The 630-minute total shortfall is the alternative measure and is in the table above. Choose one and do not plead both.
- The continuing-weeks clause in remedy (b) has no figure, by design: the period runs to the order.

Verification checklist

- [] Forum, hearing body, caption, county line and required copies
- [] Filing date and the one-year limitations cutoff
- [] School years and programs challenged
- [] Residence and who holds educational rights
- [] Current school
- [] Service log and make-up counts
- [] Compensatory quantities, and which measure is pleaded
- [] Independent educational evaluation request and the District's response

- [] Burden of proof allocation in North Carolina
- [] Every statutory and regulatory citation
- [] Signature block, bar number and service list